

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201504960	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/05/2015 12:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/5/2016	Precinct: 79		
Date/Time CV Reported Tue, 06/09/2015 1:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/17/2015 2:09 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Rafal Korycki	01607	952946	079 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Jared Delaney	01320	952653	079 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Rafal Korycki	Discourtesy: PO Rafal Korycki spoke discourteously to § 87(2)(b)	A . Unsubstantiated			

Case Summary

On June 5, 2015, at approximately 12:20 p.m., § 87(2)(b) was double parked in front of § 87(2)(b) in Brooklyn, waiting for a parking space, when PO Rafal Korycki and PO Jared Delaney approached his vehicle.

PO Korycki asked § 87(2)(b) why he was double parked, and as § 87(2)(b) tried to explain that he was waiting for a parking spot, PO Korycki allegedly told § 87(2)(b) that he “did not give a fuck” about why § 87(2)(b) was double parked (**Allegation A**) (B.R. 04). Then, after he refused to put his keys on top of the car as PO Korycki requested, PO Korycki allegedly stated, “Don’t put your keys on top of the fucking car” (**within Allegation A**) (B.R. 03).

PO Korycki issued § 87(2)(b) a § 87(2)(a) 160.50 summons § 87(2)(a) 160.50 (NYPD Documents 01).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- A Notice of Claim inquiry was requested on July 22, 2015, the results of which are pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two previous CCRB complaints, § 87(2)(b)
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
- PO Korycki has been a member of the service for three years, and has been listed as a subject officer in one prior MOS reported complaint. § 87(2)(g)
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) identified PO Korycki by name, and PO Korycki acknowledged interacting with him. § 87(2)(g)
[REDACTED]

Allegation A - Discourtesy: PO Rafal Korycki spoke discourteously to § 87(2)(b)

During the course of the interaction, § 87(2)(b) alleged that PO Korycki told him he “did not give a fuck” about why he was double parked (B.R. 04).

In his phone statement, § 87(2)(b) alleged that after he refused to put his keys on top of the car as PO Korycki requested, PO Korycki stated, “Don’t put your keys on top of the fucking car” (B.R. 03).

PO Korycki denied using profanity in his interaction with § 87(2)(b) and PO Delaney also denied hearing PO Korycki use profanity (B.R. 06 and B.R. 07).

§ 87(2)(g)

§ 87(2)(b) noted in his interview that PO Korycki had used other profanity that he could not recall, § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 7

Investigator: _____ Lauren Kerstein _____
Signature Print Date

Pod Leader: _____ _____ _____
Title/Signature Print Date

Attorney: _____ _____ _____
Title/Signature Print Date